

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #07	CCRB Case #: 201506814	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 08/07/2015 11:30 PM, Saturday, 08/08/2015 12:00 AM	Location of Incident: § 87(2)(b) 67th Precinct stationhouse	18 Mo. SOL 2/7/2017	Precinct: 67
Date/Time CV Reported Sat, 08/08/2015 2:33 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/14/2015 12:35 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dalsh Veve	30734	946571	067 PCT
2. POM Joel Crooms	17984	950249	067 PCT
3. Officers			
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Hauswirth	02912	947067	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joel Crooms	Abuse: PO Joel Crooms stopped § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Dalsh Veve	Abuse: PO Dalsh Veve stopped § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Joel Crooms	Abuse: PO Joel Crooms frisked § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	C . Substantiated
D . POM Dalsh Veve	Abuse: PO Dalsh Veve frisked § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	D . Substantiated
E . An officer	Abuse: An officer searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	E . Officer(s) Unidentified
F . POM Joel Crooms	Abuse: PO Joel Crooms searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	F . Unsubstantiated
G . POM Dalsh Veve	Abuse: PO Dalsh Veve searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		
J . Officers	Force: Officers used physical force against § 87(2)(b) at the 67th Precinct Stationhouse.	J . Exonerated

Case Summary

On August 8, 2015, Captain Erik Worobey of the 67th Precinct filed the following IAB complaint on behalf of § 87(2)(b) who was diagnosed with a contusion while in police custody (board review 1). The complaint generated original log number § 87(2)(b), and was received at the CCRB on August 14, 2015.

On August 7, 2015, at approximately 11:30 p.m., PO Joel Crooms, PO Dalsh Veve, and PO Matthew Hauswirth of the 67th Precinct responded to a 311 call regarding individuals using and selling narcotics and trespassing behind § 87(2)(b) in Brooklyn. PO Crooms and PO Veve stopped § 87(2)(b) and § 87(2)(b) (**Allegations A and B**). Both PO Crooms and PO Veve allegedly frisked § 87(2)(b) and § 87(2)(b) and PO Veve allegedly frisked § 87(2)(b) (**Allegations C and D**). An unidentified officer allegedly searched § 87(2)(b) and both PO Veve and PO Crooms allegedly searched § 87(2)(b) (**Allegations E, F, and G**). PO Veve recovered a marijuana cigarette from § 87(2)(b)'s pocket and arrested him in regards (board review 3). No one else was summonsed or arrested. § 87(4-b), § 87(2)(g)

At the 67th Precinct Stationhouse, PO Veve and PO Crooms instructed § 87(2)(b) to go into a crowded holding cell, but he refused. Multiple officers then allegedly punched, kicked, stepped on, and knelt § 87(2)(b) (**Allegation J**). § 87(2)(b) was transported to § 87(2)(b),

§ 87(2)(a) PHL § 18(6)

Consequent to the altercation at the stationhouse, § 87(2)(b) was also charged with § 87(2)(b).

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- As of August 27, 2015, § 87(2)(b) had not filed a Notice of Claim with the City of New York with regard to this incident (board review 2).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (board review 4). § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

- PO Crooms has been a member of the NYPD for four years. He has one other open CCRB case, case 201507156, which includes allegations of a vehicle stop and vehicle search. He has had four previous CCRB cases involving eight allegations, one of which was substantiated. In case 201408836, PO Crooms allegedly frisked an individual. The allegation was substantiated and PO Crooms received command discipline in regards.
- PO Veve has been a member of the NYPD for seven years. He has two other open CCRB cases, case 201506442 and case 201507156, which includes allegations of a vehicle stop and vehicle search. He has had four previous CCRB cases involving four allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Potential Issues

§ 87(2)(b) and § 87(2)(b) were each contacted by the CCRB and scheduled in-person appointments; however, they all failed to cooperate with the investigative process.

§ 87(2)(g)

§ 87(2)(b) provided the name of an additional witness, § 87(2)(b). On September 15, 2015, contact was established with § 87(2)(b) who confirmed that he did not witness the incident (board review 33). § 87(2)(b) identified two additional victims, § 87(2)(b) and § 87(2)(b) but refused to provide their contact information. Database searches for § 87(2)(b) produced one address and one phone number. Between October 23, 2015, and November 24, 2015, five voicemails were left for § 87(2)(b) and two letters were sent. § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

It was alleged that approximately five to seven officers responded to § 87(2)(b). PO Veve and PO Crooms explained that they were the first officers to arrive at the location and that they stopped and frisked all of the individuals present. Although they stated that they did not conduct searches, they acknowledged being the only officers to make physical contact with the individuals at the scene.

§ 87(2)(g)

§ 87(2)(b) alleged that he was frisked and then searched by a white male officer in his 30s, standing approximately 5'11" tall, with a somewhat stocky build (board review 30). PO Hauswirth, who is a slim (not stocky) white man, confirmed that by the time he reached the back of § 87(2)(b) PO Veve and PO Crooms had already handled the job, and he did not frisk or search anyone. Though PO Veve and PO Crooms took responsibility for all of the frisks, they are both black men and do not match the description provided by § 87(2)(b). None of the officers were able to recall who, if any, additional officers responded. No event documents were generated in regards to this incident, and the incident was listed as a pick-up on the UF-61 (board review 5; 6). Furthermore, no Stop and Frisk report was prepared for § 87(2)(b) (board review 7), thus leaving the interaction with § 87(2)(b) wholly undocumented.

§ 87(2)(g)

§ 87(2)(b) alleged that while at the 67th Precinct Stationhouse, approximately twelve officers, including PO Veve, PO Crooms, and unidentified officers hereto referred to as "PO1" and "PO2," who were both described as black males, used physical force against him. § 87(2)(b) was unable to describe most of the officers in detail, and could not specify which officer used what type of

force against him. Neither PO Veve nor PO Crooms could recall which officers were present during the struggle with § 87(2)(b). The roll call listed a total of 20 black male officers who could have been at the stationhouse during the incident and the Prisoner Holding Pen Roster showed that all of the cell attendants at and around the time of the incident were white males (board review 8; 9). § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – PO Joel Crooms stopped § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

Allegation B – PO Dalsh Veve stopped § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) provided phone statements to the CCRB on August 19 and September 1 of 2015, and a sworn statement on August 26, 2015 (board review 27; 28). His statements were generally consistent. § 87(2)(b) explained that at approximately 11:00 p.m. on the date of the incident, he, § 87(2)(b) and § 87(2)(b) were having a barbeque in a parking lot behind § 87(2)(b). § 87(2)(b) did not live at § 87(2)(b) and did not know if anyone else present did. No one was drinking alcohol. § 87(2)(b) had a marijuana joint in his pocket. PO Crooms and PO Veve, among other unknown officers, responded to the location and instructed all of the individuals to line up near some vehicles in the lot.

§ 87(2)(b) and § 87(2)(b) provided unsworn phone statements to the CCRB, which were generally consistent with § 87(2)(b)'s testimony (board review 29; 30; 31). § 87(2)(b) and § 87(2)(b) acknowledged that no one present lived at § 87(2)(b) and § 87(2)(b). § 87(2)(b) explained that § 87(2)(b) was a vacant house. § 87(2)(b) and § 87(2)(b) recalled that the officers had stated that they had received a complaint or report of activity going on in the parking lot.

PO Crooms, PO Veve, and PO Hauswirth explained that they received a 311 report of a large group of individuals who were using and selling narcotics, and possibly drinking alcohol in a lot behind § 87(2)(b) which was abandoned. All three officers claimed to have smelled marijuana as they approached the lot. PO Crooms and PO Veve stated that when they reached the lot, they observed approximately five black males including § 87(2)(b) who was smoking a marijuana joint. When § 87(2)(b) saw the officers, he put the joint in his pocket. Neither officer saw anyone else using narcotics and they did not observe any narcotics transactions. PO Veve and PO Crooms observed other individuals drinking out of clear plastic cups and saw a bottle of Hennessy on the ground, leading them to

believe that the individuals were drinking alcohol. The officers asked the group what they were doing and if any of them lived there. PO Crooms claimed that some individuals admitted that they were drinking alcohol. PO Veve claimed that everyone denied living there, and PO Crooms claimed that all but one individual denied living there, and that that individual later admitted he did not live there. PO Crooms and PO Veve instructed all of the individuals to line up in order to frisk them, and all of the individuals complied.

Officers may stop and question an individual to the extent necessary to gain explanatory information when they have reasonable suspicion that the person has committed, is committing, or will imminently commit a felony or misdemeanor, People v. DeBour, 40 N.Y.2d 201 (1976) (board review 14).

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation C – PO Joel Crooms frisked § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

Allegation D – PO Dalsh Veve frisked § 87(2)(b) and § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

Allegation E – An officer searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

Allegation F – PO Joel Crooms searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

Allegation G – PO Dalsh Veve searched § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that after lining everyone up, officers searched all of the individuals, except for § 87(2)(b) and put their hands into some, if not all, of the individuals' pockets. § 87(2)(b) was unable to specify who specifically searched who and in what way. He did not believe that § 87(2)(b) was frisked. An officer, identified via the investigation as PO Veve, searched § 87(2)(b) last. PO Veve did not pat § 87(2)(b) down but immediately put his hands in § 87(2)(b)'s pockets and removed the contents including a marijuana joint.

In unsworn phone statements to the CCRB, § 87(2)(b) and § 87(2)(b) alleged that everyone at the location was searched, though § 87(2)(b) denied being searched or frisked herself. Although § 87(2)(b) provided a description of the officer who allegedly searched him, neither he nor § 87(2)(b) were able to describe the other officers conducting the searches, and they were unable to describe the searches in detail. § 87(2)(b) recounted that officers searched everyone present, and he was frisked and searched by an officer whose description fit that of both PO Veve and PO Crooms. No contraband was found on any of the aforementioned individuals.

PO Veve stated that he frisked approximately two or three people, whose names he did not obtain, before frisking § 87(2)(b) while PO Crooms frisked the rest. PO Veve claimed that officers always conduct frisks when dealing with groups of people. He did not observe bulges on any of the individuals he frisked, and did not recall seeing bulges on anyone PO Crooms frisked. He believed, however, that the individuals may have been in possession of weapons because they were in an area with frequent gang activity. He added that the 311 caller reported drug activity, and that jobs involving drugs often involve weapons as well. PO Veve frisked § 87(2)(b) last, and saw approximately 1.5 inches

of the marijuana joint poking out of his pocket. PO Veve put his hand in § 87(2)(b)'s pocket to remove the joint. PO Veve denied searching anyone else and did not see PO Crooms search anyone. PO Veve did not prepare any Stop and Frisk Reports. All of the individuals were compliant during the frisk.

PO Crooms stated that he frisked two or three individuals, whose names he did not obtain, and that PO Veve frisked the rest, including § 87(2)(b). He stated that everyone was compliant with being frisked. PO Crooms stated that he decided to frisk the individuals because they were drinking and trespassing, and because the area had frequent gang, drug, and weapon activity. He added that the 311 call was regarding narcotics transactions, and that in his experience, incidents involving drugs often involved weapons as well. PO Crooms also stated that he frisked the individuals because he observed unusually shaped bulges in their pant pockets. Though the shapes of the bulges did not definitively resemble weapons, PO Crooms suspected they could have been caused by weapons. He argued that weapons now come in all shapes and sizes: tasers can be round or square and shaped like wallets or cell phones, and cell phone cases can have brass knuckles attached to them. PO Crooms did not find any contraband on any of the individuals. He did not prepare any Stop and Frisk reports because he claimed that there was no reasonable suspicion that a crime was being committed. PO Crooms denied searching anyone. He could not specify if PO Veve frisked or searched § 87(2)(b) but did not see him search anyone else.

PO Hauswirth stated that by the time he reached the lot, § 87(2)(b) was already in handcuffs. PO Hauswirth smelled marijuana but did not observe anyone smoking or using any drugs. He stated to the CCRB that he did not have any reason to believe that any of the individuals were carrying weapons. He did not frisk or search anyone and did not recall seeing PO Veve or PO Crooms do so either.

In order to perform a frisk, an officer must have reasonable suspicion that a person is armed and dangerous, Arizona v. Johnson, 555 U.S. 323 (2009) (board review 15). According to People v. Marine, 142 A.D.2d 368 (1st Dept. 2011), an officer cannot base his suspicion of a person merely upon the observation of an indefinable bulge and the reputation of a location. Though such factors may be considered, reasonable suspicion must be based on some describable conduct of the defendant and objective factors specific to the incident (board review 17).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Officer Unidentified**.

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Allegation J – Officers used physical force against § 87(2)(b) at the 67th Precinct Stationhouse.

§ 87(2)(b) stated that once at the 67th Precinct Stationhouse, PO Crooms and PO Veve asked him to enter a crowded holding cell over two to three times. § 87(2)(b) did not comply at any point and demanded that he be placed in an empty cell by himself. PO Crooms, PO Veve, and PO1 tried to push him into the cell. § 87(2)(b) stated that he tensed his body, extended his arms with open palms toward the officers, and tried to remove the officers' hands from his body, preventing the officers from pushing him in. § 87(2)(b) stated to the CCRB that he was trying to "maintain his personal space." As § 87(2)(b) stood in the doorway, an officer or officers attempted to close the cell door against his left shoulder to push him into the cell. § 87(2)(b) could not recall which officer did so. He pushed the door back toward the officers. Approximately ten officers, who he could not describe, then came over and allegedly began to punch him in the face, kick him, and knee his back.

§ 87(2)(b) alleged that he was punched in his face over six times by multiple officers and eventually felt his tooth chip from one of the punches. He could not specify which officers committed which actions of force, but believed that PO2 may have been the officer to chip his tooth. Once he felt his tooth chip, he brought himself to the ground. § 87(2)(b) stated that he tried to defend himself by "blocking, stopping, grabbing," and doing whatever he could to protect his face and move out of the way when the officers swung at him. Though he did not specifically recall hitting any officer, he acknowledged that he may have done so while trying to defend himself.

§ 87(2)(b) stated that he was eventually handcuffed while on the ground. After being handcuffed, he alleged that officers stepped on him, kicked his lower back over five times, put their knees on his back, kned his face, and continued to punch him. § 87(2)(b) was dragged into an empty cell by officers who he did not see. He denied refusing walk to the cell. § 87(2)(b) stated that he sustained shoulder and back pain, as well as swelling to his nose and face. He sustained an abrasion on his right leg from being dragged to the cell. § 87(2)(b) took photos of his chipped tooth and the abrasion to his right leg on August 20, 2015, and additional photos of those injuries were taken at the

CCRB on August 26, 2015 (board review 25; 26). During his CCRB interview, § 87(2)(b) pointed out a small scar on his right forearm. He did not know how he sustained the scar but believed it may have been sustained during the incident.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) who was in the holding cell at the time of the incident, provided a brief written statement to PO Veve, who in turn provided it to the CCRB, in which he wrote that “the officer was asking him § 87(2)(b) to go into the cell and the guy swung on him for no reason,” (board review 19). In an unsworn phone statement to the CCRB, § 87(2)(b) stated that an officer asked § 87(2)(b) to go into the cell and that § 87(2)(b) refused, turned around, and tried to grab and fight the officer (board review 32). The officer attempted to handcuff § 87(2)(b) but he resisted by moving his body, swinging his arms, fighting the officer, and doing “everything he could for them not to cuff him.” § 87(2)(b) was unable to specify in what way § 87(2)(b) tried to fight the officer. Approximately seven additional officers responded and immediately brought § 87(2)(b) to the ground, where they handcuffed his arms and legs. § 87(2)(b) could not specify how the officers brought § 87(2)(b) to the ground, but confirmed that he did not see any officers use physical force against § 87(2)(b). He could not tell if § 87(2)(b) sustained any injuries.

Both PO Crooms and PO Veve explained that they each asked § 87(2)(b) to step into the cell numerous times and that he repeatedly refused their requests. Each officer claimed to have opened the cell door, though both officers denied slamming the door on § 87(2)(b)'s body. Both officers stated that § 87(2)(b) took one step into the cell putting only half of his body through the doorway, but that before the door could be closed, § 87(2)(b) turned around and attempted to punch PO Veve in the face with his right fist. PO Crooms claimed that he grabbed § 87(2)(b)'s left arm, which § 87(2)(b) continued to move. PO Crooms stated that he conducted a leg sweep, bringing § 87(2)(b) to the ground so that he could more easily restrain and handcuff him. He added that § 87(2)(b) was significantly larger in stature than PO Crooms and PO Veve.

PO Veve stated that when § 87(2)(b) attempted to punch him PO Veve ducked down, avoiding the punch, and grabbed § 87(2)(b)'s wrist and torso. § 87(2)(b) pulled his arm and moved his body, causing PO Veve to fall back against a wall. Additional officers responded, and PO Crooms and other officers assisted in trying to control § 87(2)(b) who fought the officers by swinging his arms and kicking his legs. § 87(2)(b) and PO Veve “bounced around” against the walls and the gated cell door as § 87(2)(b) continued to resist. PO Veve pulled § 87(2)(b)'s arm, bringing him to the ground to gain control and handcuff him. PO Veve believed that § 87(2)(b) landed face down on the ground, at which point he continued to swing his arms, pull them away from officers, and hold them under his body. PO Crooms assisted in gaining control of § 87(2)(b)'s arms, and they were eventually able to handcuff § 87(2)(b). Neither PO Veve nor PO Crooms could recall which additional officers responded, how many additional officers responded, or how, if at all, the additional officers assisted. Both PO Veve and PO Crooms denied punching, kicking, stepping on, or kneeling § 87(2)(b) and did not see any other officers do so. PO Crooms stated that § 87(2)(b) walked to the cell and was not dragged, and PO Veve could not recall if he walked or was dragged. PO Crooms stated that officers had to move some people out of a cell so they could place § 87(2)(b) in a cell by himself. PO Veve explained that they did so to prevent § 87(2)(b) from engaging in further physical altercations with other prisoners.

PO Crooms did not recall having seen any of the alleged injuries on § 87(2)(b) and did not hear him complain of any injuries. PO Veve did not observe any injuries on § 87(2)(b) until later in the night, at which point he observed some bruises and small scrapes on § 87(2)(b)'s face. PO Veve did not know how specifically the injuries were sustained but stated that they could have been sustained when § 87(2)(b) and PO Veve were bouncing against the wall and gate or when § 87(2)(b) was brought to the ground.

PO Veve had a previous injury above his left eye which was reopened during the incident. He did not know exactly at which point during the struggle the injury reopened, as he did not realize it had reopened until after the struggle. He did not file a Line of Duty report in regards, as the injury was preexisting. Captain Worobey reported PO Veve's injury to IAB and stated that he received medical attention at the stationhouse but did not require further treatment at the hospital.

PO Crooms noted in his memo book that § 87(2)(b) was fighting officers in the cells (board review 20). PO Veve wrote in his memo book that § 87(2)(b) swung at him with a closed fist, and then kicked, punched, and refused to be handcuffed (board review 21). The On Line Booking System, prepared by PO Veve, and the criminal court complaint state that after refusing to step into the holding cell, § 87(2)(b) attempted to punch PO Veve, and that when other officers responded, § 87(2)(b) repeatedly attempted to punch and kick them as well (board review 10; 11). The Medical Treatment of Prisoner Report noted that § 87(2)(b) had bruises and scrapes, and that both handcuffs and leg shackles were used to restrain him (board review 22). Though no arrest photograph was taken of § 87(2)(b) a photograph of him was taken for the Prisoner Movement Slip (board review 23). The photo does not depict any notable injuries but is discolored and does not clearly show the left side of his face.

Patrol Guide Procedure 203-11 authorizes officers to use the minimum amount of force necessary to enforce compliance with a lawful order and overcome resistance to affect an arrest (board review 24).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

It is therefore recommended that **Allegation J** be closed as **Exonerated**.

Squad: 7

Investigator:	<u>Liliana Manuel</u>	
Signature	Print	Date

Pod Leader:	<u>Diana Murray</u>	
Title/Signature	Print	Date

Attorney:		
Title/Signature	Print	Date